



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00129 Park Estates, 4th Filing Annexation
Date: May 10, 2021

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/10/2021
- Public Services Committee 5/18/2021
- Second reading 5/24/2021
- Public Services Committee 6/8/2021
- Third and final reading 6/14/2021

Related Items:

- Park Estates, 4th Filing Zone Change (UDC-21-00131)

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED SOUTHWEST OF THE INTERSECTION OF BRAEHILL ROAD, PARKHILL ROAD, AND PANORAMA DRIVE."**BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:**

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Darold Stephen Melchior, Et Ux (TL Provision, LLC), owners of:

5318 Braehill Rd – also known as Tract 1 of Park Estates, Fourth Filing being situated in the east one-half of Section 22, Township 14 North, Range 66 West of the Sixth Principal Meridian, Laramie County, Wyoming, said parcel being more particularly described as follows:

Beginning at a point on the east property line of said Tract 1 Park Estates, Fourth Filing and the northwesterly corner of Lot 20, Block 4 Viewpoint, thence along said east property line of said Tract 1 S00°14'47"E a distance of 276.15 feet to a point on the southeasterly property line of Tract 1 and the beginning of a non-tangent curve to the right; said curve having a radius of 302.29, a chord bearing of N29°25'55"W, a chord distance of 377.72 feet and a central angle of 77°19'40", thence along the arc of said curve a distance of 407.98 feet to a point on the southerly right of way of Parkhill Road; thence N09°37'40"W a distance of 59.97 feet to a point on the northerly right of way of Parkhill Road; thence along said northerly right of way N80°22'20"E a distance of 59.56 feet to the beginning of a curve to the right; said curve having a radius of 638.00, a chord bearing of N85°05'53"E, a chord distance of 105.75 feet and a central angle of 09°30'27", thence along the arc of said curve a distance of 105.87 feet to a point on the westerly right of way of Braehill Road; thence N89°50'17"E a distance of 60.00 feet to a point on the easterly right of way of Braehill Road; thence along said easterly right of way S00°09'43"E a distance of 60.41 feet to a point on the northeasterly right of way of Panorama Drive; thence N89°46'31"W a distance of 60.03 feet to a point on the northwesterly right of way of Panorama Drive; thence along said northwesterly right of way the following courses and distances: S00°10'54"E a distance of 15.00 feet to a point; thence S28°22'24"E a distance of 63.56 feet more or less to the point of beginning.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Adam E. Deschler, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 12045; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned AR Agricultural Residential by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and

its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published: _____



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

MAY 10, 2021

STAFF REPORT

FILE: UDC-21-00129: Park Estates, 4th Filing Annexation

REQUEST: An annexation of 1.4 acres of land

LOCATION: Southwest of the intersection of Parkhill, Braehill, and Panorama.

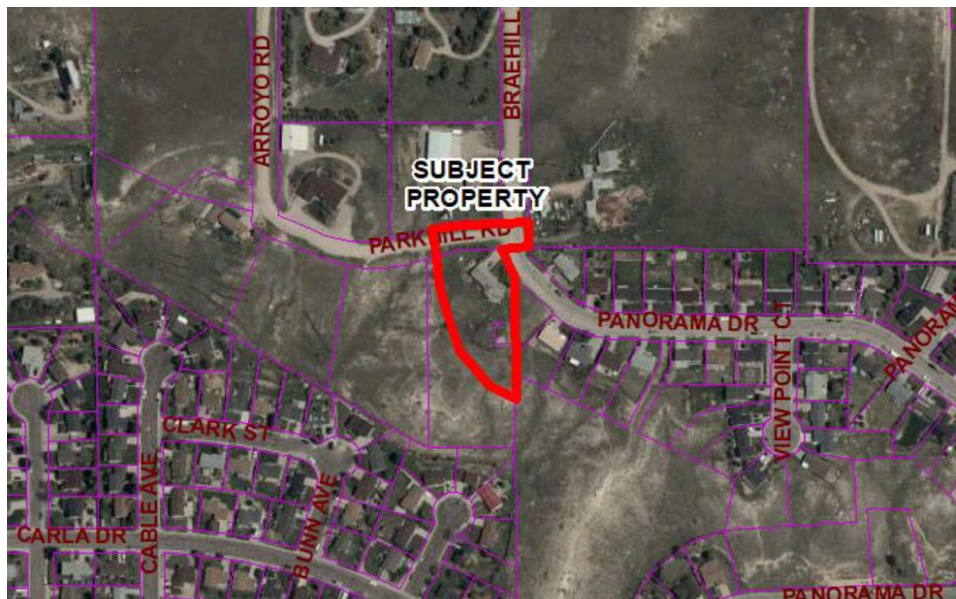
APPLICANT: TL Provision, LLC

AGENT: AVI, PC

OWNER: Darold Stephen Melchior, Et Ux

PURPOSE: To allow urban-level residential development

PREPARED BY: Seth Lloyd, Planner II - Development



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexing of 1.4 acres of land for future single-unit residential development. The County Assessor presently shows the land as a portion of Tract 5, Park Estates and an unplatted parcel – however, this property is proposed to be replatted as Park Estates, 4th Filing in the County and recorded as such prior to the final reading of this annexation ordinance. The proposed parcel would be Tract 2 of the proposed Park Estates, 4th Filing plat. The land is currently developed with one single-family home in the County. A zone change is proposed concurrently with this annexation. Both applications are anticipated to come to final consideration before the Governing Body at the same meeting.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by a submission to change the zoning from County AR Agricultural Residential to the City zone of MR Medium-density Residential.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	County AR	Low-density Single-family Residential
North	Urban Residential	County AR	Low-density Single-family Residential
South	Urban Residential	County AR, MR	Single-family Residential
East	Urban Residential	MR	Single-family Residential
West	Urban Residential	County AR	Undeveloped

The property is currently zoned AR Agricultural Residential in the County. The property is concurrently proposed to be annexed and rezoned to the MR Medium-density Residential. The MR zone is generally described as a primarily residential zone with compact neighborhood development patterns. The district generally allows a variety of residential uses with some smaller-scale civic or commercial uses.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

- 1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]**

The annexation of this property will increase the health, safety, and welfare of the occupants of future development once it is built. By being in City limits, the property will receive access to

City Fire and Police and sanitation services. The property will also be connected to City water and sanitary sewer instead of having wells and septic systems.

The application **complies** with this review criterion.

- 2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]**

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The contiguity to the east makes the parcel a natural geographic part of the City. City-developed residential properties are also in close proximity to the south. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. City water and sewer lines exist in the vicinity and could be extended with the development of the property.

The application **complies** with this review criterion.

- 4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation is about 31.3% contiguous, along the eastern edge.

The application **complies** with this review criterion.

- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was made to the landowners and public utilities on April 8, 2021. The public hearing for this annexation is scheduled for May 10, 2021. Twenty (20) business days prior to the announced public hearing is April 12, 2021. The earliest confirmation of receipt was dated April 9, 2021.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

The Future Land Use Map of PlanCheyenne anticipates this area of the community to develop with an urban residential style of development. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits. Policies in PlanCheyenne support development within the Urban Service Boundary and the utilization of existing infrastructure.

STAFF REVIEW:

Through the review process, comments were made noting the need to extend City services.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and services typically available to urban areas are available to this property.

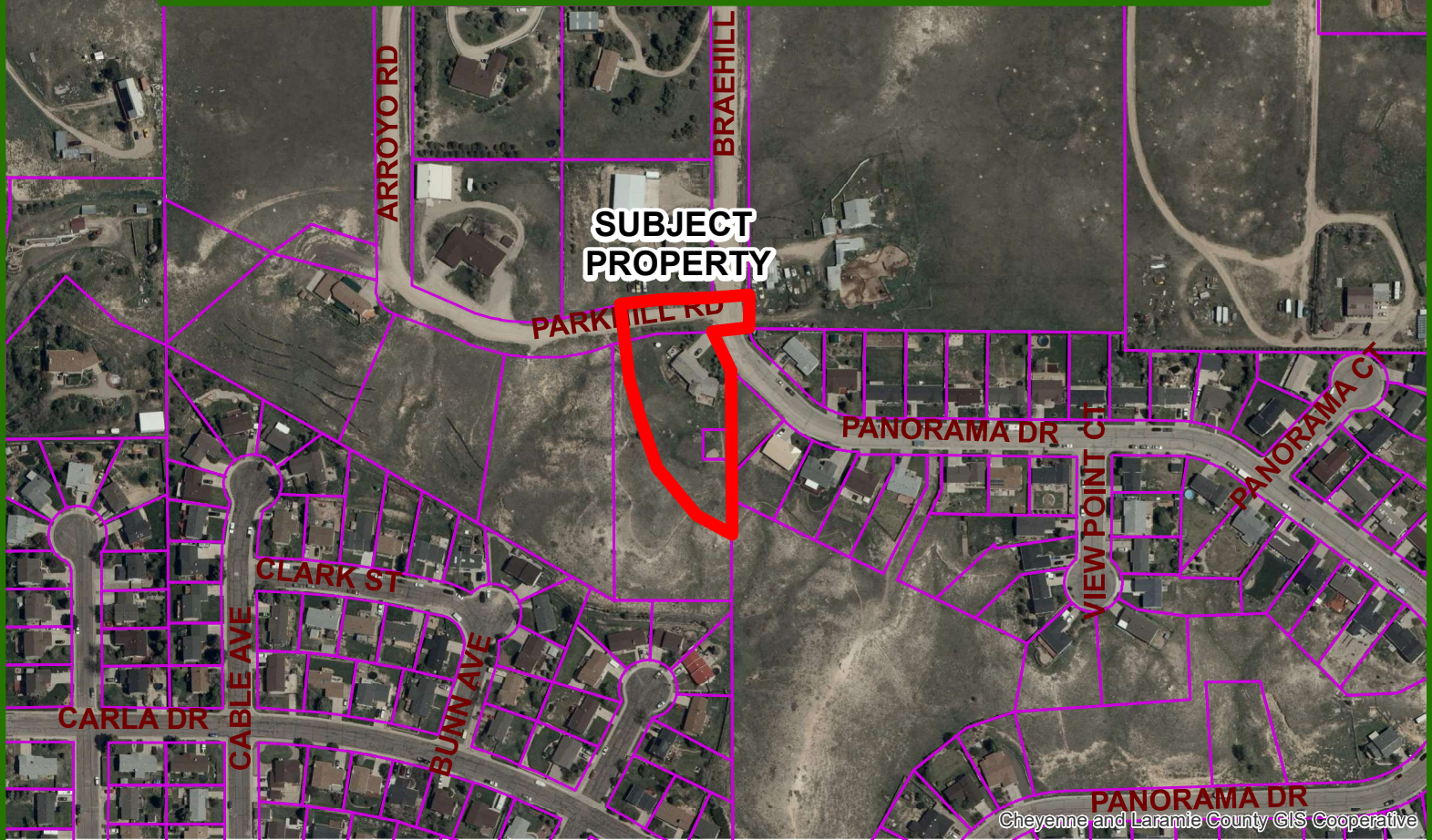
STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Aerial, Current City Limits, and Future Land Use Map
2. Submitted Application
3. Applicant-submitted annexation map

5318 Braehill (Parkhill Estates, 4th Filing) Annexation

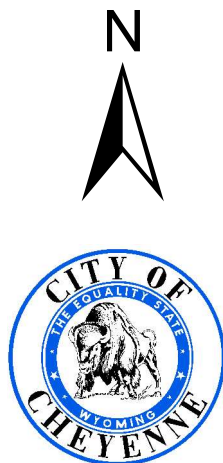


Application Number
Annexation
UDC-21-00129

Agent: AVI, PC
Owners: TL Provision LLC
Darold Stephen Melchior

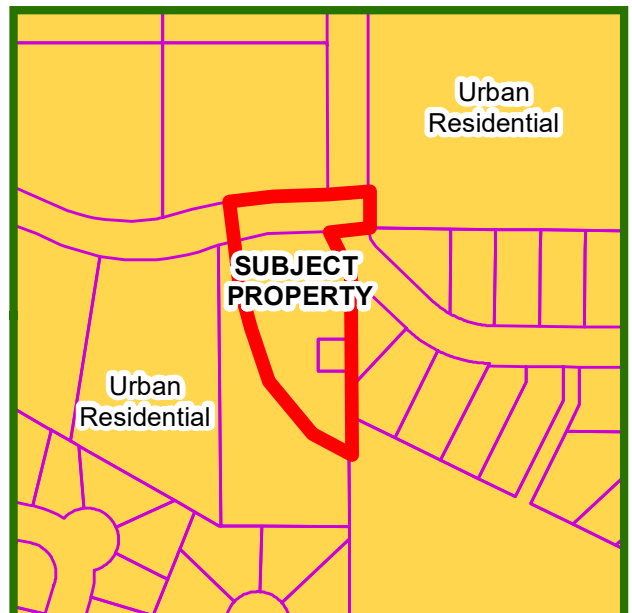
0 310 620
Feet
Scale applies to above map only

Current City Limits



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Annexation Application

Submission date: **31 March 2021, 6:05PM**
Receipt number: **9**
Related form version: **8**

General Information

Applicant Name: **TL Provision LLC**

Applicant Address: **2010 warren ave**

Applicant City: **cheyenne**

Applicant State: **wyoming**

Applicant Zip Code: **82001**

Applicant Phone: **3076372323**

Applicant Email: **steve@melchlaw.com**

Representative Name: **AVI PC**

Representative Address: **1103 old town lane**

Representative City: **cheyenne**

Representative State: **wyoming**

Representative Zip Code: **82009**

Representative Phone: **3076376017**

Representative Email: **avi@avipc.com**

Owner Name: **TL Provision LLC**

Owner Address: **2010 warren ave**

Owner City: **cheyenne**

Owner State:	wyoming
Owner Zip Code:	82001
Owner Phone:	3076372323
Owner Email:	steve@melchlaw.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	LOA signed 3-23-21.pdf
Project Location (Street Address or General Location):	5318 braehill rd
Assessor's Parcel ID number(s)	
Total Project Area	1.11 acre
Current Zoning	AR
Proposed Zoning	MR - Medium-density Residential

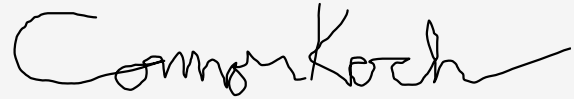
Application-Specific Information

For platted lots, provide legal description. If unplatted, type "unplatted."	tract 1 of park estates 4th filing, being situated in the east 1/2 of section 22, township 14 north, range 66 west of the sixth principal meridian, laramie county, wyoming
Formal Annexation Petition	annexation-petition.pdf
Board of Public Utilities Clearance Form	bopu clearance.pdf
Annexation Map	annexation.pdf

Signature / Certification

Applicant Signature

Name of signatory: Connor Koch

A handwritten signature in black ink that reads "Connor Koch". The signature is written in a cursive style with a long horizontal stroke at the end.

[Link to signature](#)

Please enter an email address for an email receipt.

ckoch@avipc.com



PETITION FOR ANNEXATION

TO: **THE HONORABLE MAYOR, PATRICK COLLINS,**

AND MEMBERS OF THE CITY COUNCIL OF THE CITY OF
CHEYENNE, WYOMING:

KNOW ALL THAT TL Provision, LLC,
Owner name(s)

The undersigned owners, hereby petition to annex to the City of Cheyenne,
Wyoming, the following described property:

Legal description of requested annexation (attach additional sheet if necessary):

Tract 1 of Park Estates 4th Filing being situated in the east 1/2 of section 22,
township 14 north, range 66 west of the sixth principal meridian, Laramie
County, Wyoming.

The undersigned petitioners hereby respectfully request that said property and
adjacent streets be annexed to the City of Cheyenne, and be made a part
thereof.

By submitting the petition for annexation, the undersigned agree to abide with
all applicable provisions and City ordinances, rules, and regulations involving
annexation.



Planning and Development Department – ANNEXATION PETITION

Attach additional sheet if necessary.

	D. Steve Melchior	3/30/21
Signature	Printed Name	Date

Signature	Printed Name	Date
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Signature	Printed Name	Date
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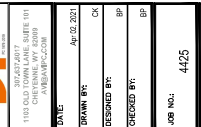
Signature	Printed Name	Date
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Note: According to Wyoming State Statute § 15-1-403(b), no signature is valid if it is dated more than 180 days prior to the date of filing. No person signing a petition for annexation may withdraw his/her signature from the petition after it has been filed with the City Clerk.

Attest:

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PROJECT:	PARK ESTATES, 4TH FILING
DRAWING TITLE:	ANNEXATION MAP



PREPARED MARCH 2021

SCALE 1" = 500'

